

vide with a view to the discontinuance of the undertaking, or is with a view to continuing the undertaking free from any restrictions or limitations such as are mentioned in section one (1) of this Act which are contained in the company's articles of association or any of such restrictions or limitations.

- (4) The Board of Trade in giving consent or the Court in making a winding-up order, as the case may be, may impose such terms or conditions for giving effect to this Act as it thinks fit.

Short title.

3. This Act may be cited as the Companies (Foreign Interests) Act, 1917.

CHAPTER 19.

An Act to reduce, in connection with the present War, the Number of Jurors at Coroners' Inquests.

[24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Number of
coroner's jury.

50 & 51 Vict.
c. 71.

1. "Seven" and "eleven" shall be substituted for "twelve" and "twenty-three" respectively in section three of the Coroners Act, 1887, as the minimum and maximum number of jurors who are to be summoned by a coroner, and "seven" shall accordingly also be substituted for "twelve" in subsection (3) of that section and subsection (5) of section four of the Coroners Act, 1887.

Short title and
duration.

2.—(1) This Act may be cited as the Coroners (Emergency Provisions) Act, 1917.

(2) This Act shall have effect only during the continuance of the present war and for a period of six months after the termination thereof.

CHAPTER 20.

An Act to make provision for the Billeting of Persons engaged on Work of National Importance for the purposes of the present War. [24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Where any Government department certify that the carrying on of any work is of national importance for the purposes of the present war and necessitates the provision of accommodation in any locality for persons employed on that work, the department may send to the Board constituted under this Act a request to provide such accommodation, and if that Board are of opinion that for that purpose it is expedient to provide billets under this Act in that locality, it shall be lawful to billet the persons employed on such work in that locality in accordance with the provisions of this Act.

Power to billet persons engaged on work of national importance.

2.—(1) For the purposes of this Act there shall be constituted by order of the Minister of Munitions a Board to be called the Central Billeting Board, and hereinafter referred to as “the Board,” consisting of a chairman and representatives of the Government departments concerned and such other persons, including one or more persons having special knowledge of housing conditions, as the Minister thinks fit (so however that at least two members of the Board shall be women), and the Minister may by the same or any subsequent order provide for assigning to the Board such officers and servants as subject to the consent of the Treasury he may think necessary, and for regulating the procedure of the Board and the authentication of notices and other instruments issued by the Board.

Constitution and duties of Central Billeting Board.

(2) Where any Government department send to the Board such certificate and request as aforesaid they shall furnish to the Board such particulars as the Board may require, and the Board shall take the request into consideration, and, if it appears to them that for the purpose of providing the required accommodation it is expedient to do so, it shall be the duty of the Board to make arrangements as soon as practicable for billeting in the locality the workers for whom the accommodation is required :

Provided that where, with respect to any locality, the Army Council have given notice to the Board that, with a view to possible military exigencies, it is expedient that persons shall not be billeted under this Act in that locality, or shall be billeted only to such a limited extent as may be specified in the notice, it shall not be lawful for the Board to arrange for billeting in that locality or, as the case may be, in excess of the limits so specified.

(3) The Board may, subject to the approval of the Ministry of Munitions, make rules for any purpose for which rules are to be made under this Act, and generally for carrying this Act into operation.

3.—(1) Where the Board propose that workers should be billeted in any locality, they shall establish a local committee for the locality and shall for that purpose either—

Constitution and duties of local committees.

- (a) utilise the services of any existing organisation ; or
- (b) constitute, in such a manner as they think fit, a separate body ;

and in either case shall provide for the inclusion as members of the committee of at least two representatives who are members of a local authority or local authorities which appear to the Board to be interested, and for the committee being assisted by one or more executive officers appointed by the Board, who shall receive such salary or other remuneration (if any) as the Board, with the consent of the Treasury, may determine, and the Board may from time to time vary the constitution of any such local committee.

(2) The Board may prescribe the procedure of local committees and the authentication of any notice or other instrument issued by any local committee.

(3) It shall be the duty of the local committee, subject to rules made by the Board,—

- (a) to ascertain the accommodation available in the locality for billets, and the occupiers of premises within the locality who are willing to provide accommodation, and the amount of accommodation they are willing to provide ; and
- (b) to allocate the persons to be billeted amongst the various persons liable to provide billets ; and
- (c) to prescribe the nature of the lodging, attendance, and meals or food to be provided, and the scales of payment (within such limits as may be fixed by rules made by the Board) to be made therefor ; and
- (d) to supervise billets ; and
- (e) to hear and settle complaints by persons liable to provide billets or by whom billets have been provided, and by persons billeted.

(4) The rules of the Board regulating the administration by local committees of their duties under this Act shall provide that—

- (a) the local committee in allocating billets shall in the first instance allocate billets to such persons only as are willing to provide them, and generally shall have regard to the convenience of the several occupiers of premises ;
- (b) persons shall, so far as practicable, not be billeted on the occupier of any premises who is unwilling to provide billets, or in excess of the number for which he is willing to provide, before he has been given an opportunity of submitting his objections to the committee ;
- (c) in the case of the following premises persons shall not be billeted on the occupier thereof without his consent, that is to say :—

- (i) where the person to be billeted is a man, a house in which women only, with or without children, are living, a house of a member of any of His Majesty's forces who is absent on duty, the premises of any female religious community ;

(ii) where the person to be billeted is a woman, a house in which men only, with or without children, are living, the premises of any male religious community ;

(iii) bank premises ;

(iv) the residence of any ambassador, minister, agent, or consul of any foreign country duly accredited as such.

4.—(1) It shall be the duty of the occupier of any premises within a locality where this Act is in operation— Duty to provide billets.

- (a) to give to the local committee or their executive officer such information with respect to his premises and the persons for the time being residing therein as may be reasonably required for ascertaining the accommodation in the premises available for billets ;
- (b) to provide such billets as he may be required to provide under this Act, and to furnish such attendance and meals or food for the persons billeted on him as may reasonably be prescribed by regulations of the local committee, and generally to conform with any rules as to the treatment of persons billeted on him which may be made by the Board under this Act ;

and if any such person refuses or wilfully neglects to comply with any of the foregoing provisions of this section he shall be liable on conviction before a court of summary jurisdiction to a fine not exceeding five pounds.

(2) Any occupier of any such premises who feels himself aggrieved by a proposal to billet persons on him, or by the number of persons to be billeted on him, or by the conduct or habits of persons billeted on him, may complain to the local committee, and the local committee shall take such complaint into consideration, and if satisfied of the justice of the complaint shall remedy the grievance ; and if the occupier is dissatisfied with the decision of the local committee he may appeal to the Board, and the Board shall take the matter into consideration and, after giving the local committee an opportunity of being heard, may make such order as in the circumstances may appear to the Board to be proper.

(3) Every person on whom any worker is billeted shall be entitled to receive weekly payment in respect thereof in accordance with such scale applicable to the case as may be prescribed by regulations of the local committee, and to receive reasonable compensation for damage done to his premises and the contents thereof, fair wear and tear excepted, and any such sum shall, if the person billeted fails to pay it within one week after it has become due, be paid by the local committee.

(4) If any difference arises as to the amount of such compensation, the amount (if it cannot be settled by the conciliation of the local committee) shall be such as may be fixed by a certificate of the county court of the district in which the

premises are situate, and the Lord Chancellor may make such rules as he thinks fit for the purposes of this subsection, and may by such rules provide for applications for certificates being made to and certificates given by the registrar, subject to appeal to the judge.

(5) If the occupier of any premises on whom a person is billeted under this Act suffers direct loss or damage, including loss of earnings, which he proves to the satisfaction of the Board to have been caused by the person so billeted being infected with or spreading any infectious disease to which the provisions of section six of the Infectious Disease (Notification) Act, 1889, section fifty-five, subsection (8) of the Public Health (London) Act, 1891, or regulations under section one hundred and thirty of the Public Health Act, 1875, extend, the Board may, if they think fit, pay reasonable compensation, and any sums paid by the Board as such compensation shall be treated as expenses of the Board.

52 & 53 Vict.
c. 72.
54 & 55 Vict.
c. 76.
38 & 39 Vict.
c. 55.

Duties and
rights of per-
sons billeted.

5.—(1) It shall be the duty of any person billeted in any premises under this Act to observe such rules as to conduct as may be laid down by rules of the Board, and generally to conduct himself in such manner as to cause as little inconvenience as possible to the person on whom he is billeted.

(2) It shall not be lawful for any person so billeted—

(a) except in such cases as may be prescribed by rules made by the Board, or except where leave of the executive officer has been obtained, to leave the billet without giving one week's notice to the occupier of the premises, or making payment in lieu of notice; or

(b) to leave the billet without paying to the occupier of the premises any sums which may be due from such person under this Act otherwise than as compensation for damage;

and if he leaves the billet in contravention of this provision he shall, if an information is laid by or on behalf of the local committee, be liable on conviction before a court of summary jurisdiction to a fine not exceeding five pounds.

(3) A local committee may at any time order any person billeted under this Act to leave a billet, and if such person fails to comply with any such order of the local committee he shall be liable on conviction before a court of summary jurisdiction to a fine not exceeding five pounds, and to a further fine not exceeding one pound for each day during which the offence continues.

(4) If a person so billeted is guilty of violence drunkenness or indecency, of such a character as to require his immediate removal from the premises where he is billeted, he shall be guilty of an offence against this Act, and liable on conviction before a court of summary jurisdiction to a fine not exceeding twenty pounds, and a person charged with any such offence may

be arrested without warrant by any constable, and the occupier of the premises shall have the same right of removing from the premises a person committing such an offence as if he were a trespasser.

(5) If a person billeted under this Act feels aggrieved as to his treatment in the billet, he may complain to the local committee, who shall take the complaint into consideration and, if satisfied of the justice of the complaint, shall take such steps as may be practicable to remedy the grievance.

(6) A person billeted under this Act shall be liable to pay every week to the occupier of the premises in which he is billeted such sums as may be prescribed by the scale applicable to the case as laid down by the local committee, and shall also be liable to pay reasonable compensation (to be ascertained in case of dispute in manner aforesaid) for any damage caused by him to the premises or the contents thereof (except fair wear and tear), and if on his making default in such payments the local committee is called upon to discharge his obligation, the amount shall be recoverable from him by the local committee summarily as a civil debt, and the court before which the proceedings are taken may, without prejudice to any other available means of recovery, make an order requiring such deductions to be made on account of the sum due from the wages of that person as the court may think fit, and requiring the person by whom the wages are for the time being paid to account for any sums deducted in accordance with the order.

6. If any person—

Offences

- (a) personates or falsely represents himself to be a person authorised to demand any billet or to be billeted under this Act; or
- (b) receives, demands, or agrees for any money or reward whatsoever to excuse or relieve any person from being entered in a list as liable, or from his liability to billets, under this Act, or from any part of such liability; or
- (c) gives or agrees to give any money or reward to any person to excuse or relieve him from being entered in a list as liable, or from his liability to billets under this Act, or any part of such liability; or
- (d) gives or agrees to give any person billeted upon him in pursuance of this Act any money or reward in lieu of receiving such person or furnishing such accommodation as is required by this Act; or
- (e) for the purpose of avoiding or enabling any other person to avoid any liability under this Act, gives to the local committee or an executive officer any false information with respect to any matter with respect to which he is required to furnish information under this Act; or

(f) forges or fraudulently alters or uses or permits to be fraudulently used any instrument issued for the purposes of this Act ;

he shall be guilty of an offence and liable on summary conviction to imprisonment not exceeding three months or a fine not exceeding one hundred pounds, or to both such imprisonment and fine.

Provisions as to rules.

7. All rules made under this Act by the Board shall be laid before Parliament as soon as may be after they are made, but such rules shall not be deemed to be statutory rules to which section one of the Rules Publication Act, 1893, applies.

56 & 57 Vict. c. 66.

Expenses.

8. The salaries or other remuneration of executive officers of local committees under this Act and all other expenses of local committees, to such extent as may be authorised by the Treasury, shall be paid by the Board, and all such expenses and any other expenses of the Board authorised by the Treasury shall be defrayed out of moneys provided by Parliament.

Saving.

9. No person shall without his consent be liable to have billeted on him under this Act any enemy subject.

Application to Scotland.

10. In the application of this Act to Scotland, "sheriff court" shall be substituted for "county court," references to Act of Sederunt made by the Court of Session shall be substituted for references to rules made by the Lord Chancellor, section seventy-eight of the Public Health (Scotland) Act, 1897, shall be substituted for section one hundred and thirty of the Public Health Act, 1875, and the reference to an information laid by or on behalf of a local committee shall not apply.

60 & 61 Vict. c. 38.

Short title and extent.

11.—(1) This Act may be cited as the Billeting of Civilians Act, 1917.

(2) This Act shall not extend to Ireland.

CHAPTER 21.

An Act to prevent the treatment of Venereal Disease otherwise than by duly qualified medical Practitioners, and to control the supply of Remedies therefor; and for other matters connected therewith.

[24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :